

1 AN ACT relating to the Department of Agriculture and declaring an emergency.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 246.055 is amended to read as follows:

4 (1) The Department of Agriculture may accept federal aid, **nonfederal funds and**
5 **grants**, gifts, donations, or devises~~[- The Department of Agriculture is authorized in~~
6 ~~its discretion to accept the provisions of any Act of Congress appropriating,~~
7 ~~granting, or apportioning funds or commodities to the state for use in connection~~
8 ~~with any program of the Department of Agriculture. The Commissioner shall~~
9 ~~prescribe for the proper apportionment and distribution of these funds, property or~~
10 ~~commodities in accordance with the state and federal laws].~~

11 **(2) For use in connection with any program of the department and for the benefit of**
12 **programs under its control and supervision, the department is authorized to do**
13 **any of the following:**

14 **(a) Accept provisions of any Act of Congress appropriating, granting, or**
15 **apportioning funds or commodities to the state;**

16 **(b) Receive funds appropriated by the General Assembly, or from any other**
17 **source identified in subsection (1) of this section;**

18 **(c) Provide for the proper apportionment and disbursement of such funds in**
19 **accordance with state or federal laws; or**

20 **(d) Accept and provide for the administration of any nonfederal funds or**
21 **grants, gifts, donations, or devises from any source public or private.**

22 **(3) [(2)]** The Commissioner of Agriculture may enter into any agreement and carry out
23 the terms of such agreement with any department of the federal government, **or**
24 **state or local public agency**, to handle funds, commodities or any devise under any
25 program assigned to or handled by the Department of Agriculture.

26 ➔Section 2. Whereas under the Department of Agriculture's current authority, the
27 department is unable to apply for several available privately funded grants that, if

1 awarded, would greatly impact agriculture in the Commonwealth, an emergency is
2 declared to exist, and this Act takes effect upon its passage and approval by the Governor
3 or upon its otherwise becoming a law.